

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DESMOND CULLINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. STEPHEN BARRY, SHIELD NO:
17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ,
SHIELD NO: 1486 OF THE 40TH PRECINCT AND
SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF
THE 40TH PRECINCT,

Defendant.

-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is:
Plaintiff's residence

Plaintiff resides at:
375 East 188th Street, Apt# 4A
Bronx, New York 10458

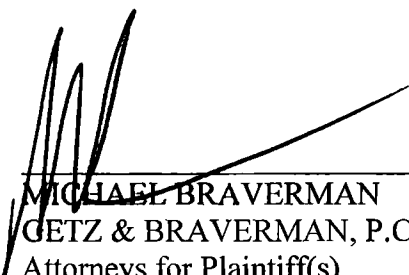
County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York

January 10, 2022



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
DESMOND CULLINS
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

Our File No. 9729

TO: THECITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

P.O. STEPHEN BARRY, SHIELD NO: 17142,
OF THE 40TH PRECINCT
257 Alexander Avenue
Bronx, NY 10454

P.O. BENITO CRUZ, SHIELD NO: 1486
OF THE 40TH PRECINCT
257 Alexander Avenue
Bronx, NY 10454

SERGEANT WILLIAM MILLER, SHIELD NO: 3280,
OF THE 40TH PRECINCT
257 Alexander Avenue
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DESMOND CULLINS,

Plaintiff,

-against-

Index No.:

Date Purchased:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. STEPHEN BARRY, SHIELD NO:
17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ,
SHIELD NO: 1486 OF THE 40TH PRECINCT AND
SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF
THE 40TH PRECINCT,

Defendant,

-----X

Plaintiff, by his attorneys GETZ & BRAVERMAN, P.C., complaining of the Defendant respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **DESMOND CULLINS** resided in the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.
3. That on October 20, 2020, and at all times herein mentioned, Defendant **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** was, and still is, a municipal corporation.
4. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY**

POLICE DEPARTMENT, its agents servants and employees supervised, maintained and controlled its personnel.

5. Upon information and belief, at all times mentioned, Defendants **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

6. That on March 12, 2021, and Order to Show Cause was filed , to file a late Notice of claim, which was accepted by stipulation, dated March 29, 2021.

7. That a General Municipal Law 50(h), a hearing has been scheduled for January 12, 2022.

8. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

AS AND FOR THE FIRST CAUSE OF ACTION

9. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "8" with the same force and effect as if more fully set forth herein.

10. That on or about October 20, 2020, Plaintiff, **DESMOND CULLLINS**, was wrongfully and falsely arrested, detained and imprisoned, without any right or grounds therefore.

11. That on or about October 20, 2020, the defendants acting within the scope and authority

of their employment and office, wrongfully and falsely accused the plaintiff, **DESMOND CULLINS**, of the crimes of obstructing governmental administration.

12. Upon information and belief, on or about October 20, 2020 and from that time until the dismissal of charges on or about September 20, 2021, which was a favorable termination for the accused by the Bronx County Criminal Court, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, deliberately and maliciously prosecuted Plaintiff **DESMOND CULLINS**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of Bronx, New York County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

13. That the said arrest and imprisonment of plaintiff, **DESMOND CULLINS**, was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **DESMOND CULLINS**, was in fact guilty of such crimes.

14. That the said arrest of the plaintiff herein was caused, allowed and permitted by the Defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.

15. That the defendant, their agents, servants and/or employees falsely arrested the plaintiff,

compelled h to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff at other diverse places and times, including, but not limited to, precinct in the station-house in the County of New York, City and State of New York and Central Booking located in the Borough of New York, City and State of New York.

16. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiff herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be, arrested, searched, detained and placed in confinement at said locations.

17. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiff **DESMOND CULLINS** was falsely, publicly, wickedly and maliciously accused.

18. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiff herein; plaintiff was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.

19. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, was caused

wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiff herein.

20. That by reason of the aforesaid, the plaintiff was subjected to great indignities, humiliation and ridicule; was greatly injured in her credit and circumstances; was prevented from performing and transacting him necessary affairs and business; and was incapacitated from his usual occupation.

21. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "21", with the same force and effect as if more fully and at length set forth herein.

23. That on or about the October 20, 2020, and prior and subsequent thereto, in the County of Bronx and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.

24. That the plaintiff was wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.

25. That on or about the October 20, 2021, and prior and subsequent thereto, the defendants,

their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including felonies, misdemeanors and violations.

26. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiff's favor.

27. That the aforesaid occurrence, false arrest, imprisonment of the plaintiff and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendant's, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

28. That by reason of the aforesaid, the plaintiff still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to her credit and circumstances; was prevented from performing and transacting her necessary affairs and business; and was incapacitated from her usual occupations. Upon information and belief, the plaintiff has expended diverse sums of monies, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon her by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

29. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs

marked "1" through "29", with the same force and effect as if more fully set forth herein.

31. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of her civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about January 21, 2021, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

32. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of her civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about October 20, 2020, in that the defendants, their agents, servants and/or employees failed to recognize that plaintiff's right had been unjustly

violated, and in that the defendants, their agents, servants and/or employees were otherwise careless , reckless and negligent.

33. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

34. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in her credit and circumstances; was prevented from performing and transacting her necessary affairs and business. Upon information and belief plaintiff has expended diverse sums of monies and incurred debt, in an effort to extricate herself from the imprisonment, indignities and humiliation foisted upon her by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AND AS FOR A FOURTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "34" inclusive with the same force and effect as if more fully and at length set forth herein.

36. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in

their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendants; in that the defendant lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, department and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

37. That the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, savvy, knowledge, deportment and ability to be employed by the defendant, **NEW YORK CITY POLICE DEPARTMENT**; in that defendants failed to exercise due to care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendant; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

38. That the aforesaid occurrence, the false arrest and imprisonment, malicious prosecution, negligence in performance of duties and negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

39. That by reason of the aforesaid, the plaintiff has been subjected to indignities and humiliation was greatly injured in his credit and circumstances caused by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.

40. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" inclusive with the same force and effect as if more fully and at length set forth herein.

42. That the defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of **NEW YORK CITY POLICE DEPARTMENT**, in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless, reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within

the employ of the **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, search plaintiff, **DESMOND CULLINS** that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendant police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent.

43. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention and negligent supervision and training, was caused solely wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

44. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule, was greatly injure in her credit and circumstances; was prevented from performing and transacting her necessary affairs and business; and was prevented to perform her usual occupation. Upon information and belief, plaintiff has expended and incurred diverse sums of money in an effort to extricate himself from the indignities and humiliation imposed upon her by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.

45. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "45" inclusive with the same force and effect as if more fully and at length set forth herein.

47. That on or about January 21, 2021, in the County of Bronx, City and State of New York, at which time and place defendants **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT** were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT.**

48. As plaintiff was lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT** who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be arrested, detained, prosecuted and imprisoned, stripped and searched and in violation of plaintiff's civil rights; in ailing to recognize, detect and investigate same; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or

supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiff.

49. That defendants, **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, failed to properly and adequately ascertain that plaintiff was not in violation of the law and that plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving him of her rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed her and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiff without any conduct on the part of the plaintiff to so warrant, to wit: in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and mental injury to the plaintiff, arrested, detained, prosecuted and imprisoned the without hers consent; plaintiff was at all times conscious of her arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged;

- a) in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause

economic and mental injury to the plaintiff, arrested, detained,

and imprisoned the plaintiff without his consent;

plaintiff was at all times conscious of his arrest, detention,

prosecution and imprisonment did not consent to the arrest,

detainment, prosecution and imprisonment; and the arrest,

detainment, prosecution and imprisonment was not otherwise

privileged; and

- b) the arrest, detention, prosecution and imprisonment were not justified

by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of New York, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.

- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and

civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,

- d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any way.

50. Defendants, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, did not have probable cause to arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of her Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

51. Defendants, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT,,** did not have probable cause to arrest, detain, prosecute and imprison plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's

Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

52. As a direct result of the aforesaid actions and conduct of the part of the said defendants, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, plaintiff was falsely arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of Bronx and to undergo a criminal proceeding(s).

53. That at all times hereinafter mentioned, the defendants, **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.

54. That at all times hereinafter mentioned, defendants, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, were acting pursuant to orders and directives from defendants,

THE CITY OF NEW YORK AND NEW YOR CITY POLICE DEPARTMENT and acting within the scope and authority of his/their employment and office. , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT,,** were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** within the scope and authority of their employment and office.

56. That at all times hereinafter mentioned, defendants, **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT,** were acting pursuant to, and within the scope and authority of their employment and office.

57. That during all times hereinafter mentioned, the defendants, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT,** and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiff and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.

58. The defendants, **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, were employed by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, **, P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, did not confer due process upon the plaintiff herein, and in denied the rights, privileges and immunities guaranteed plaintiff and other citizens of the United States of America by the Constitution of the United States of America.

59. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of **NEW YORK CITY POLICE DEPARTMENT** and more particularly the defendants, **, P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, in acting in concert with persons unknown to the plaintiff and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers my properly,

appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

60. Although defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, knew or should have known of the fact that this pattern of conduct was carried out by, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other Citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

61. The conduct of the defendants, , **P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, deprived plaintiff of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- b) The right of plaintiff no to be deprived of life, liberty or property without due process of law, and the right to the equal protection of

the laws secured by the fourteenth Amendment to the Constitution
of the United States.

62. That by reason of the aforesaid negligence, false arrest and false imprisonment, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, , P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff, and compel her to abandon her rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. "JOHN DOE", OF THE 40TH PCT, TAX ID #: 960838 AND P.O. "JOHN DOE" 2-7, real names unknown**, violated 42 U.S.C. Sec. 1983 in that the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acted as persons who under color of any statute, ordinances, regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of her rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; was

subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule, injured her character and reputation, was prevented from attending her usual business and vocation and was injured in her reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

63. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was cause solely and wholly by reason of the negligence of the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, , P.O. STEPHEN BARRY, SHIELD NO: 17142, OF THE 40TH PRECINCT, P.O. BENITO CRUZ, SHIELD NO: 1486 OF THE 40TH PRECINCT AND SERGEANT WILLIAM MILLER, SHIELD NO: 3280, OF THE 40TH PRECINCT**, without any negligence on the part of the plaintiff herein.

64. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and he was incapacitated from his usual occupation. Upon information and belief, plaintiff has expended diverse sums of monies, and incurred debt, in an effort to extricate herself from the imprisonment, indignities and humiliation foisted upon her by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.

65. That by reason of the aforesaid, the plaintiff requests the following relief:

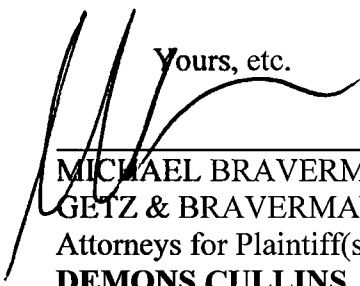
- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
- b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York

January 10, 2022

Yours, etc.



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
DEMONS CULLINS
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9721

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF BRONX

Desmond Cullins, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed Summons & Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Bronx, New York
January 10, 2022

Desmond Cullins

Sworn to before me this

10th day of January, 2022

Notary Public MICHAEL IRA BRAVERMAN
NOTARY PUBLIC, STATE OF NEW YORK
COUNTY OF BRONX
Certificate Filed in
Bronx County
Commission Expires 12-27-2021

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DESMOND CULLINS,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK, CITY POLICE
DEPARTMENT, P.O. "JOHN DOE", OF THE 40TH PCT,
TAX ID #: 960838 AND P.O. "JOHN DOE" 2-7, real names unknown

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

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(718) 993-3000

TO:

THECITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

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